

Court No. - 64

Case :- WRIT - C No. - 20800 of 2024

Petitioner :- Jiyauddin

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Saurabh Srivastava, Shweta Srivastava

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Jayant Banerji, J.

Hon'ble Manjive Shukla, J.

1. No one appears to press this petition even in the revised call.
2. This case is passed over.

Order Date :- 25.6.2024

A. V. Singh

(Manjive Shukla, J.) (Jayant Banerji, J.)

Court No. - 21

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Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Saurabh Srivastava, Shweta Srivastava

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The prayer made is for quashing of the recovery notice dated 05.07.2023 against the petitioner for recovery of dues in pursuance of proceedings under Section 126 of the Electricity Act, 2003.

2. Shri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department, on instructions, states that the impugned demand has been withdrawn and that fresh order will be passed strictly in accordance with Clause 6.8 of the Electricity Supply Code, 2005.

3. Having regard to the aforesaid stand, we **dispose of** the instant petition with liberty to the respondent-Electricity Department to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.7.2024

Ankit.